Document

EXHIBIT 10.44

The Goldman Sachs Group, Inc.

______Year-End Performance-Based RSU Award

This Award Agreement, together with The Goldman Sachs Amended and Restated Stock Incentive Plan (2021) (the “Plan”), governs your award of performance-based RSUs (your “Award” or “PSUs”). You should read carefully this entire Award Agreement, which includes the Award Statement, any attached Appendix and the signature card.

Acceptance

1.

You Must Decide Whether to Accept this Award Agreement

. To be eligible to receive your Award, you must by the date specified (a) open and activate an Account and (b) agree to all the terms of your Award by executing the related signature card in accordance with its instructions. By executing the signature card, you confirm your agreement to

all

of the terms of this Award Agreement, including the arbitration and choice of forum provisions in Paragraph 16.

Documents that Govern Your Award; Definitions

2.

The Plan

.

Your Award is granted under the Plan, and the Plan’s terms apply to, and are a part of, this Award Agreement.

3.

Your Award Statement

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The Award Statement delivered to you contains some of your Award’s specific terms. For example, it contains the number of PSUs subject to this Award, the Performance Period and the Performance Goal applicable to your Award. It also contains the Determination Date and [the] [any applicable] Settlement Date[s] for your Award and the [any applicable] Transferability Date[s] for any Shares at Risk that may be delivered to you in respect of any Settlement Amount that you may earn. The number of PSUs on your Award Statement is not necessarily the number of PSUs in respect of which the Settlement Amount will be earned, but is merely the basis for determining the amount (if any) that will be delivered to you.

4.

Definitions

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Unless otherwise defined herein, including in the Definitions Appendix or any other Appendix, capitalized terms have the meanings provided in the Plan.

Vesting of Your PSUs

5.

Vesting

.

Your PSUs are Vested. When a PSU is Vested, it means

only

that your continued active Employment is not required to earn delivery in respect of that PSU.

Vesting does not mean you have a non-forfeitable right to the Vested portion of your Award. The terms of this Award Agreement (including conditions to delivery, satisfaction of the Performance Goal and any applicable Transfer Restrictions) continue to apply to your Award, and failure to meet such terms may result in the termination of this Award (as a result of which no delivery in respect of such Vested PSUs would be made) and you can still forfeit Vested PSUs and Shares at Risk.

Performance Goal

6.

Performance
.
 The Settlement Amount is dependent, and may vary based, on achievement of the Performance Goal over the Performance Period. On the Determination Date, the Firm will determine whether or not, and to what extent, the Performance Goal for that Performance Period has been satisfied. All your rights with respect to the Settlement Amount [(and any Dividend Equivalent Payments)] are dependent on the extent to which the Performance Goal is achieved, and any rights to delivery in respect of your Outstanding PSUs immediately will terminate and no Settlement Amount will be delivered in respect of such PSUs upon the Committee’s determination, in its sole discretion, that the Performance Goal has not been satisfied to the extent necessary to result in delivery in respect of the PSUs.
Settlement Amount
7.
Settlement
.

(a)
In General
. Subject to satisfaction of the terms of this Award, including satisfaction of the Performance Goal, on the Settlement Date, you will receive delivery (less applicable withholding as described in Paragraph 13(a)) of the Settlement Amount [and payment of any Dividend Equivalent Payments] as further described in this Award Agreement and in your Award Statement. Until such delivery [and payment], you have only the rights of a general unsecured creditor and you do not have any rights as a shareholder of GS Inc. with respect to either the PSUs or the Settlement Amount. Without limiting the Committee’s authority under Section 1.3.2(h) of the Plan, the Firm may accelerate any Settlement Date by up to 30 days.

(b)
Form of Delivery
. The Settlement Amount will be delivered on the Settlement Date as follows:
(i)
[___% in the form of cash].
(ii)
[___% in the form of Shares [at Risk] (by book entry credit to your Account)].
(c)
Shares at Risk
. ___ percent of the Shares delivered to you in respect of the Settlement Amount will be Shares at Risk subject to Transfer Restrictions until the [applicable] Transferability Date [listed on your Award Statement]. Any purported sale, exchange, transfer, assignment, pledge, hypothecation, fractionalization, hedge or other disposition in violation of the Transfer Restrictions on Shares at Risk will be void. Within 30 Business Days after the Transferability Date listed on your Award Statement (or any other date on which the Transfer Restrictions are to be removed), GS Inc. will remove the Transfer Restrictions. The Committee or the SIP Committee may select multiple dates within such 30-Business-Day period on which to remove Transfer Restrictions for all or a portion of the Shares at Risk with the same Transferability Date and all such dates will be treated as a single Transferability Date for purposes of this Award.
[Dividend Equivalent Rights] [Dividends]
8.
[
Dividend Equivalent Rights
.] [
Dividends
].
 [To the extent described in your Award Statement, each PSU will include a Dividend Equivalent

Right, which will be subject to the provisions of Section 2.8 of the Plan. Accordingly, for each of your Outstanding PSUs with respect to which delivery is made under the Settlement Amount, you will be entitled to payments under Dividend Equivalent Rights equal to any regular cash dividend paid by GS Inc. in respect of a Share the record date for which occurs on or after the Date of Grant. The payment to you of amounts under Dividend Equivalent Rights (less applicable withholding as described in Paragraph 13(a)) is conditioned upon the delivery under the Settlement Amount in respect of the PSUs to which such Dividend Equivalent Rights relate, and you will have no right to receive any Dividend Equivalent Payments relating to PSUs for which you do not receive delivery under the Settlement Amount (including, without limitation, due to a failure to satisfy the Performance Goal). Dividend Equivalent Payments will be paid on the Settlement Date.] [You will be entitled to receive on a current basis any regular cash dividend paid in respect of your Shares at Risk. The PSUs do not include Dividend Equivalent Rights.]

Forfeiture of Your Award

9.

How You May Forfeit Your Award

.

This Paragraph 9 sets forth the events that result in forfeiture of up to all of your PSUs and Shares at Risk and may require repayment to the Firm of up to all amounts previously paid or delivered to you under your PSUs in accordance with Paragraph 10. More than one event may apply, and in no case will the occurrence of one event limit the forfeiture and repayment obligations as a result of the occurrence of any other event. In addition, the Firm reserves the right to (a) suspend delivery of the Settlement Amount [and payment of any Dividend Equivalent Payments] or release of Transfer Restrictions on Shares at Risk or (b) [pay cash][deliver the Settlement Amount] (including Dividend Equivalent Payments or dividends) [or deliver Shares at Risk] into an escrow account in accordance with Paragraph 13(f)(v) [or (c) [apply Transfer Restrictions to any Shares] in connection with any investigation of whether any of the events that result in forfeiture under the Plan or this Paragraph 9 have occurred. Paragraph 12] (relating to certain circumstances under which release of

Transfer Restrictions may be accelerated) provides for exceptions to one or more provisions of this Paragraph 9. [The U.K. Material Risk Taker Appendix supplements this Paragraph 9 and sets forth additional events that result in forfeiture of up to all of your PSUs and Shares at Risk and may require repayment to the Firm as described in Paragraph 10 and the U.K. Material Risk Taker Appendix.]

(a)

PSUs Forfeited Upon Certain Events

. If any of the following occurs, your rights to all of your Outstanding PSUs will terminate, and no Settlement Amount will be delivered in respect thereof, as may be further described below:

(i)

You Associate With a Covered Enterprise

. Except as prohibited by applicable law, you Associate With a Covered Enterprise during the Performance Period.

(ii)

You Solicit Clients or Employees, Interfere with Client or Employee Relationships or Participate in the Hiring of Employees

. Before the [applicable] Settlement Date and except as prohibited by applicable law, either:

(A)   you, in any manner, directly or indirectly, (1) Solicit any Client to transact business with a Covered Enterprise or to reduce or refrain from doing any business with the Firm, (2) interfere with or damage (or attempt to interfere with or damage) any relationship between the Firm and any Client, (3) Solicit any person who is an employee of the Firm to resign from the Firm, (4) Solicit any Selected Firm Personnel to apply for or accept employment (or other association) with any person or entity other than the Firm or (5) participate in the hiring of any Selected Firm Personnel by any person or entity other than the Firm (including, without limitation, participating in the identification of individuals for potential hire, and participating in any hiring decision), whether as an employee or consultant or otherwise, or

(B)   Selected Firm Personnel are Solicited, hired or accepted into partnership, membership or similar status by any entity where you have, or will have, direct or indirect managerial responsibility for such Selected Firm Personnel, unless the Committee determines that you were not involved in such Solicitation, hiring or acceptance.

(iii)

You Failed to Consider Risk

. You Failed to Consider Risk during _______.

(iv)

Your Conduct Constitutes Cause

. Any event that constitutes Cause [(including, for the avoidance of doubt, “Serious Misconduct” as defined in the U.K. Material Risk Taker Appendix)] has occurred before the [applicable] Settlement Date.

(v)

You Do Not Meet Your Obligations to the Firm

. The Committee determines that, before the [applicable] Settlement Date, you failed to meet, in any respect, any obligation under any agreement with the Firm, or any agreement entered into in connection with your Employment or this Award, including the Firm’s notice period requirement applicable to you, any offer letter, employment agreement or any shareholders’ agreement relating to the Firm. Your failure to pay or reimburse the Firm, on demand, for any amount you owe to the Firm will constitute (A) failure to meet an obligation you have under an agreement, regardless of whether such obligation arises under a written agreement, and/or (B) a material violation of Firm policy constituting Cause.

(vi)

You Do Not Provide Timely Certifications or Comply with Your Certifications

. You fail to certify to GS Inc. that you have complied with all of the terms of the Plan and this Award Agreement, or the Committee determines that you have failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.

(vii)

You Do Not Follow Dispute Resolution/Arbitration Procedures

. You attempt to have any dispute under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph 16 or Section 3.17 of the Plan, or you attempt to arbitrate a dispute without first having exhausted your internal administrative remedies in accordance with Paragraph 13(f)(viii).

(viii)

You Bring an Action that Results in a Determination that Any Award Agreement Term Is Invalid

. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.

(ix)

You Receive Compensation in Respect of Your Award from Another Employer

. Your Employment terminates for any reason or you otherwise are no longer actively Employed with the Firm and another entity grants you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of your Outstanding PSUs.

(x)

GS Inc. Fails to Maintain the Minimum Tier 1 Capital Ratio

. Before the [applicable] Settlement Date, GS Inc. fails to maintain the required “Minimum Tier 1 Capital Ratio” as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days.

(xi)

GS Inc. Is Determined to Be in Default

. Before the [applicable] Settlement Date, the Board of Governors of the Federal Reserve or the FDIC makes a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is “in default” or “in danger of default.”

(xii)

[Accounting Restatement Required Under Sarbanes-Oxley

. GS Inc. is required to prepare an accounting restatement due to GS Inc.’s material noncompliance, as a result of misconduct, with any financial reporting requirement under the securities laws as described in Section 304(a) of Sarbanes-Oxley;

provided

,

however

, that your rights with respect to the PSUs will only be terminated to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]

(xiii)

Accounting Restatement Required and Dodd-Frank Clawback Policy Applies

. GS Inc. is required to prepare an “Accounting Restatement” as described in GS Inc.’s Policy for Recovery of Erroneously Awarded Compensation (the “Dodd-Frank Clawback Policy”); in each case if, and to the same extent as, required under the Dodd-Frank Clawback Policy. For the avoidance of doubt, PSUs previously granted to you are also subject to forfeiture and clawback under this Paragraph 9(a)[(xii)/(xiii)].

(b)

Shares at Risk Forfeited upon Certain Events

. To the extent you receive delivery of Shares at Risk in connection with any Settlement Amount, if any of the following occurs your rights to all of your Shares at Risk will terminate and your Shares at Risk will be cancelled, in each case, as may be further described below:

(i)

You Failed to Consider Risk

. You Failed to Consider Risk during ________.

(ii)

Your Conduct Constitutes Cause

. Any event that constitutes Cause [(including, for the avoidance of doubt, “Serious Misconduct” as defined in the U.K. Material Risk Taker Appendix)] has occurred before the [applicable] Transferability Date.

(iii)

You Do Not Meet Your Obligations to the Firm

. The Committee determines that, before the [applicable] Transferability Date, you failed to meet, in any respect, any obligation under any agreement with the Firm, or any agreement entered into in connection with your Employment or this Award, including the Firm’s notice period requirement applicable to you, any offer letter, employment agreement or any shareholders’ agreement relating to the Firm. Your failure to pay or reimburse the Firm, on demand, for any amount you owe to the Firm will constitute (A) failure to meet an obligation you have under an agreement, regardless of whether such obligation arises under a written agreement and/or (B) a material violation of Firm policy constituting Cause.

(iv)

You Do Not Provide Timely Certifications or Comply with Your Certifications

. You fail to certify to GS Inc. that you have complied with all of the terms of the Plan and this Award

Agreement, or the Committee determines that you have failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.

(v)

You Do Not Follow Dispute Resolution/Arbitration Procedures
. You attempt to have any dispute under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph 16 or Section 3.17 of the Plan, or you attempt to arbitrate a dispute without first having exhausted your internal administrative remedies in accordance with Paragraph 13(f)(viii).

(vi)
You Bring an Action that Results in a Determination that Any Award Agreement Term Is Invalid
. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.

(vii)
You Receive Compensation in Respect of Your Award from Another Employer
. Your Employment terminates for any reason or you otherwise are no longer actively Employed with the Firm and another entity grants you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of any Shares at Risk;
provided
,
however
, that your rights will only be terminated in respect of the Shares at Risk that are replaced, substituted for or otherwise considered by such other entity in making its grant.

(viii)
[Accounting Restatement Required Under Sarbanes-Oxley
. GS Inc. is required to prepare an accounting restatement due to GS Inc.’s material noncompliance, as a result of misconduct, with any financial reporting requirement under the securities laws as described in Section 304(a) of Sarbanes-Oxley;
provided
,
however
, that your rights will only be terminated in respect of Shares at Risk to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]

(ix)
Accounting Restatement Required and Dodd-Frank Clawback Policy Applies
. GS Inc. is required to prepare an “Accounting Restatement” as described in the Dodd-Frank Clawback Policy; in each case if, and to the same extent as, required under the Dodd-Frank Clawback Policy. For the avoidance of doubt, Shares at Risk in respect of PSUs previously granted to you are also subject to forfeiture and clawback under this Paragraph 9(b)[(viii)/(ix)].

Repayment of Your Award

10.
When You May Be Required to Repay Your Award
.

(a)
Repayment, Generally
. If the Committee determines that any term of this Award was not satisfied, you will be required, immediately upon demand therefor, to repay to the Firm the following:

(i)
Any Settlement Amount (including any Shares at Risk) for which the terms (including the terms for delivery) of the related PSUs were not satisfied, in accordance with Section 2.6.3 of the Plan.

(ii)
Any Shares at Risk for which the terms (including the terms for the release of Transfer Restrictions) were not satisfied, in accordance with Section 2.5.3 of the Plan.

(iii)
[Any Shares that were delivered (but not subject to Transfer Restrictions) at the same time any Shares at Risk that are cancelled or required to be repaid were delivered.]
(iv)
[Any Dividend Equivalent Payments for which the terms were not satisfied (including any such payments made in respect of PSUs that are forfeited or any Settlement Amount that is required to be repaid), in accordance with Section 2.8.3 of the Plan.]
(v)
Any dividends paid in respect of any [delivered
Shares (including] Shares at Risk[)] that are cancelled or required to be repaid.

(vi)
Any amount applied to satisfy tax withholding or other obligations with respect to any PSUs, Settlement Amount (including Shares at Risk), dividend payments and [Dividend Equivalent Payments] that are forfeited or required to be repaid.
(b)
Repayment Upon Materially Inaccurate Financial Statements
. If any delivery is made under this Award Agreement based on materially inaccurate financial statements (which includes, but is not limited to, statements of earnings, revenues or gains) or other materially inaccurate performance criteria, you will be obligated to repay to the Firm, immediately upon demand therefor, any excess amount delivered, as determined by the Committee in its sole discretion.
For the avoidance of doubt, this Paragraph 10(b) includes any repayment required following an “Accounting Restatement” under the Dodd-Frank Clawback Policy.
(c)
[Repayment Upon Accounting Restatement Required Under Sarbanes-Oxley
. If an event described in Paragraphs 9(a)(xii) and 9(b)(viii) (relating to a requirement under Sarbanes-Oxley that GS Inc. prepare an accounting restatement) occurs, any Settlement Amount [(including Shares at Risk)], dividend payments, Dividend Equivalent Payments, cash or other property delivered, paid or withheld in respect of this Award will be subject to repayment as described in Paragraph 10(a) to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]
Terminations of Employment
11.
PSUs and Termination of Employment [or Death]
.
(a)
Employment Termination Generally
. Unless the Committee determines otherwise, if your Employment terminates for any reason or you are otherwise no longer actively Employed with the Firm (which includes off-premises notice periods, “garden leaves,” pay in lieu of notice or any other similar status), the Performance Goal applicable to your Outstanding PSUs will continue to apply and the determination of the Settlement Amount will continue to be subject to whether or not, and to what extent, the Performance Goal has been achieved, in each case, as provided in Paragraph 6. All other terms of this Award Agreement, including the forfeiture and repayment events in Paragraphs 9 and 10 [and the U.K. Material Risk Taker Appendix], continue to apply.
(b)
[Death
. If you die before the Settlement Date, your Account will, on the Settlement Date, receive delivery of the Settlement Amount and payment of the Dividend Equivalent Payments that, in each case, would have otherwise been made pursuant to Paragraph 6 and any Transfer Restrictions on Shares at Risk will cease to apply in accordance with Paragraph 12(b), after such documentation as may be requested by the Committee is provided to the Committee. All other terms of this Award Agreement, including the

forfeiture and repayment events in Paragraphs 9 and 10 [and the U.K. Material Risk Taker Appendix], continue to apply.
12.
Accelerated Release of Transfer Restrictions on Shares at Risk in the Event of a]Qualifying Termination After a Change in Control or Death
.
[To the extent you receive delivery of Shares at Risk in connection with any Settlement Amount,] [I][i]n the event of your Qualifying Termination After a Change in Control or death, each as described below, your Shares at Risk [(and delivery of your Settlement Amount in the case of death in certain circumstances)] will be treated as described in this Paragraph 12, and, except as set forth in Paragraph 12(a), all other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10 [and the U.K. Material Risk Taker Appendix], continue to apply. [In each case, the Performance Goal applicable to your Outstanding PSUs will continue to apply and the determination of the Settlement Amount will continue to be subject to whether or not, and to what extent, the Performance Goal has been achieved, in each case, as provided in Paragraph 6.]
(a)
You Have a Qualifying Termination After a Change in Control
. If your Employment terminates when you meet the requirements of a Qualifying Termination After a Change in Control, any

Transfer Restrictions will cease to apply to your Shares at Risk. In addition, the forfeiture events in Paragraph 9 will not apply to your Shares at Risk.
(b)
Death
. If you die, any Transfer Restrictions will cease to apply to your Shares at Risk as soon as practicable after the date of death and after such documentation as may be requested by the Committee is provided to the Committee[.][, unless prohibited by applicable law or regulation:
(i)
If you die prior to the Determination Date or an applicable Settlement Date, the representative of your estate will receive delivery of any undelivered portion of the Settlement Amount that would have otherwise been made pursuant to Paragraph 6 as soon as practicable after the later of the date of death and the Determination Date.
(ii)
Any Transfer Restrictions will cease to apply to your Shares at Risk.]
Other Terms, Conditions and Agreements
13.
Additional Terms, Conditions and Agreements
.
(a)
You Must Satisfy Applicable Tax Withholding Requirements
. Delivery of the Settlement Amount is conditioned on your satisfaction of any applicable withholding taxes in accordance with Section 3.2 of the Plan, which includes the Firm deducting or withholding amounts from any payment or distribution to you. In addition, to the extent permitted by applicable law, the Firm, in its sole discretion, may require you to provide amounts equal to all or a portion of any Federal, state, local, foreign or other tax obligations imposed on you or the Firm in connection with the grant or [payment][delivery] of this Award by requiring you to choose between remitting the amount (i) in cash (or through payroll deduction or otherwise) or (ii) in the form of proceeds from the Firm’s executing a sale of Shares delivered to you pursuant to this Award. In no event, however, does this Paragraph 13(a) give you any discretion to determine or affect the timing of delivery of the Settlement Amount or the timing of payment of tax obligations.
(b)
Firm May Deliver Cash or Other Property in Respect of the Settlement Amount

. In accordance with Section 1.3.2(i) of the Plan, in the sole discretion of the Committee, in lieu of all or any portion of the Settlement Amount, the Firm may deliver cash, other securities, other awards under the Plan or other property, and all references in this Award Agreement to delivery of the Settlement Amount will include such deliveries of cash, other securities, other awards under the Plan or other property.
(c)
Amounts May Be Rounded to Avoid Fractional Shares
. Any amounts delivered in respect of the Settlement Amount[, including Shares at Risk,] may be rounded to avoid fractional Shares.
(d)
You May Be Required to Become a Party to the Shareholders’ Agreement
. Your rights to your PSUs are conditioned on your becoming a party to any shareholders’ agreement to which other similarly situated employees (
e.g
., employees with a similar title or position) of the Firm are required to be a party.
(e)
Firm May Affix Legends and Place Stop Orders on Shares
. GS Inc. may affix to Certificates representing Shares any legend that the Committee determines to be necessary or advisable (including to reflect any restrictions to which you may be subject under a separate agreement). GS Inc. may advise the transfer agent to place a stop order against any legended Shares.
(f)
You Agree to Certain Consents, Terms and Conditions
. By accepting this Award you understand and agree that:
(i)
You Agree to Certain Consents as a Condition to the Award
. You have expressly consented to all of the items listed in Section 3.3.3(d) of the Plan, including the Firm’s supplying to any third-party recordkeeper of the Plan or other person such personal information of yours as the Committee deems advisable to administer the Plan, and you agree to provide any additional consents that the Committee determines to be necessary or advisable;

(ii)
You Are Subject to the Firm’s Policies, Rules and Procedures
. You are subject to the Firm’s policies in effect from time to time concerning trading in Shares and hedging or pledging Shares and equity-based compensation or other awards (including, without limitation, the “Firmwide Policy with Respect to Personal Transactions Involving GS Securities and GS Equity Awards” or any successor policies), and confidential or proprietary information, and you will effect sales of Shares in accordance with such rules and procedures as may be adopted from time to time (which may include, without limitation, restrictions relating to the timing of sale requests, the manner in which sales are executed, pricing method, consolidation or aggregation of orders and volume limits determined by the Firm);
(iii)
You Are Responsible for Costs Associated with Your Award
. You will be responsible for all brokerage costs and other fees or expenses associated with your Award, including those related to the sale of Shares;
(iv)
You Will Be Deemed to Represent Your Compliance with All the Terms of Your Award if You Accept Delivery
. You will be deemed to have represented and certified that you have complied with all of the terms of the Plan and this Award Agreement when any Settlement Amou